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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

SECURITIES AND EXCHANGE COMMISSION OF PAKISTAN

NOTIFICATION

Islamabad, the 11th March, 2015

S. R. O. 223 (I)/2015.—In exercise of the powers conferred by Sub-Section (3) of Section 86 of the Companies Ordinance, 1984(XLVII of 1984), and in supersession of the notification No. S.R.O. 192(1)/86 dated February 5, 1986, the Securities and Exchange Commission of Pakistan is pleased to prescribe the following form of circular for the purpose of the said sub-section.

THE COMPANIES ORDINANCE, 1984
SECTION 86 (3)

Circular to be sent to members alongwith the notice offering new shares

Part I - Issuer

- (a) Company profile and history
 - (i) Name of Company
 - (ii) Incorporation date
 - (iii) Date of commencement of business
 - (iv) Status (public or private, if listed name of stock exchanges where listed)
 - (v) Registration No.

(957)

- (b) Profile of management & sponsors
 - (i) Brief description of profile of directors
 - (ii) No. of directorship held
- (c) Address of the issuer
 - (i) Registered office
 - (ii) Website address
- (d) Name of the auditor
- (e) Existing capital indicating classes of shares, if any
 - (i) Authorized Capital (Amount, number of shares and price per share)
 - (ii) Paid-up capital (Amount, number of shares and price per share)
- (f) Particulars regarding holding company, if any
- (g) Particulars regarding subsidiary company, if any
- (h) Financial Highlights of the Company for preceding three years including following:

Sales

Gross profit

Profit before interest, tax, Depreciation and amortization

Profit after tax

Accumulated profit/ loss

Total assets

Total Liabilities

Net equity

Earnings per share

Dividend

Bonus

Right

As per requirements of Section 86 (3) of the Ordinance, the issuer is required to send the latest audited financial statements alongwith the offer of the proposed right issue.

- (i) Financial Highlights of consolidated financial statements same as (h) above, if any.

- (j) Major related party transactions
- (k) Details of issue of capital in previous five years
 - (i) Year wise detail of issue of capital
 - (ii) Detail of fund utilization

Part II - Issue Details

- (a) Description of Issue

Amount of the proposed issue Rs. _____
Divided into _____ Shares
of Rs. _____ each

- (b) Par value
- (c) Basis of determination of price of right issue
- (d) Proportion of new issue to existing shares with any condition applicable thereto
- (e) Date of meeting of Board of Directors (BOD) announcing right issue
- (f) Names of directors attending the BOD meeting
- (g) Primary purpose of issue (description & amount)
 - (i) Details of the main projects/ objects for which funds are raised through present right issue
 - Detail of each project
 - Total funds required for the each project
 - Percentage finance through right issue
 - Percentage finance from other sources
 - Time of completion of each project
 - (ii) Expected benefits to accrue from proposed right issue including financial projection for five years (description and amount)
- (h) Has the market price remained below par during preceding six months

- (i) Financial effects arising from right issue
 - (i) Changes in share capital
 - (ii) Net asset per share before and after right issue
 - (iii) Gearing ratio before and after right issue
- (j) Total expenses to the issue
 - (i) Bankers Commission
 - (ii) Underwriters Commission
 - (iii) Others

Part III – Risk and Risk mitigating factors

- (a) Description of major risks and company's efforts to mitigate them
 - (i) Risks relating to the project for which right issue is announced
 - (ii) Risks relating to subscription/under-subscription of right issue
 - (iii) Material contingencies
 - (iv) Material Commitments
 - (v) Description of major court cases
 - (vi) Any adverse issue reported by the auditor in their audit reports in previous five years
- (b) Names of underwriters, (if required)

Part IV - Eligibility criteria & associated matters

- (a) Eligible shareholders / investor
- (b) Bankers to the issue
- (c) Date by which offer to be accepted
- (d) Mode of acceptance
 - (i) Bank account number
 - (ii) Date by which amount to be credited in bank account to constitute valid acceptance
- (e) Any other material information having a bearing on the issue

Part V- Any other material information

Any information which has direct or indirect bearing on the investment decision

Part VI- Annexures

- (a) Extract of Resolution passing the right issue
- (b) Certificate of chief executive and CFO that the Circular constitutes full and true disclosure of all material facts relating to the right issue and that the Company will provide copies of financial statements on demand

Directors or officers authorized by Directors:

1. _____
(Name)
(Designation)

Signatures _____

2. _____
(Name)
(Designation)

Signatures _____

Date _____

[No. EMD/CI/MISC/9/04-II.]

BUSHRA ASLAM,
Secretary to the Commission.

